

# HOUSE . . . . . No. 1869

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Christopher M. Markey*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to solicitation of a juvenile under eighteen to commit murder.

PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:  | DATE ADDED:      |
|------------------------------|--------------------|------------------|
| <i>Christopher M. Markey</i> | <i>9th Bristol</i> | <i>1/17/2025</i> |

# HOUSE . . . . . No. 1869

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By Representative Markey of Dartmouth, a petition (accompanied by bill, House, No. 1869) of Christopher M. Markey relative to solicitation of juveniles under eighteen to commit murder. The Judiciary.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE HOUSE, NO. 1658 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to solicitation of a juvenile under eighteen to commit murder.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 274 of the General Laws, as appearing in the 2022 Official Edition, is hereby  
2 amended by inserting after section 2 the following new section:-

3           (1)   Whoever solicits, entices, counsels, procures, provokes, threatens, pays, agrees to  
4 pay, or offers to pay a juvenile who has not attained the age of eighteen with the intent to have  
5 said juvenile commit an armed assault on another person or murder and said juvenile does  
6 commit or attempts to commit said armed assault on another or murder, shall be punished by  
7 imprisonment in the state prison for life or for any term of years, but not less than twenty years.  
8 No sentence imposed under this subsection shall be reduced or suspended nor shall such person  
9 so sentenced be eligible for probation, parole, work release, or furlough or receive any deduction  
10 from such person's sentence for good conduct.

11           (2)     Whoever provides, delivers, purchases, hands, counsels, provokes, or aids in  
12 obtaining a juvenile under the age of eighteen a firearm, rifle, machine gun, automatic weapon,  
13 or dangerous weapon as defined by M.G.L. 140, with the intent to have said juvenile commit and  
14 armed assault on another person or murder shall be punished by imprisonment in the state prison  
15 for life or for any term of years, but not less than ten years. No sentence imposed under this  
16 subsection shall be reduced or suspended nor shall such person so sentenced be eligible for  
17 probation, parole, work release or furlough or receive any deduction from such person's sentence  
18 for good conduct.

19           (3)     “Armed Assault on another Person” shall be defined as any violation of M.G.L.  
20 C. 265 § 14, 18A, 18.

21           (4)     “Murder” shall be defined as any violation of M.G.L. C. 265 §1.